

Defendant seeks to dismiss the Complaint on several grounds.

Defendant contends that Plaintiff cannot prevail based on various asserted substantive shortcomings, including the assertion that the amount claimed is not owed because Plaintiff “issued a credit on July 12, 2023 in the full amount of \$10,400.00.” Defendant makes assertions about other things, such as Plaintiff failing to fulfill its obligations under the subject agreement.

Defendant’s contentions are procedurally improper. If Defendant seeks to challenge whether Plaintiff can prove its claims or if they are barred based on evidence beyond the pleadings, then there are a number of procedures available to a defendant to seek a pre-trial determination of such matters, such as a motion for summary judgment. A motion to dismiss in this fashion is not one of them.

Defendant’s motion relies on assertions of facts* that, ordinarily, must be adjudicated through a contested trial. Again, if no material dispute of facts exists such that Defendant is entitled to judgment as a matter of law, the proper procedural mechanism would be a motion for summary judgment or summary adjudication.

*As the Opposition points out, to the extent that factual assertions are made in the moving papers, they are wholly unsupported by a proper declaration under penalty of perjury and therefore are not evidence at all.

Disposition

The Court finds and orders as follows:

1. The Motion to Dismiss is DENIED.
2. The Court shall issue the order.

6. 9:00 AM CASE NUMBER: L25-01108

CASE NAME: BANK OF AMERICA N.A. VS. OSCAR VALLADARES ROMERO

***HEARING ON MOTION IN RE: FOR ORDER THAT MATTERS IN REQ FOR ADMISS TRUTH OF FACTS BE DEEMED ADMITT**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Plaintiff Bank of America, N.A. (“Plaintiff”) filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 14, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on January 6, 2026. Amended motion papers were filed on December 4, 2025, with amended notice of the hearing information. The motion is unopposed.

Background

Plaintiff served Defendant Oscar V. Romero (“Defendant”) with a Requests for Admission (Set One). See Declaration of Gregory Parks filed December 4, 2025 as part of Motion to

Deem Admissions (“Supporting Declaration”), ¶2 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on June 13, 2025 by mail. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated June 13, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before July 18, 2025 (30 days from and after June 13, 2025 was July 13, 2025 and five calendar days thereafter fell on July 18, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶3.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in Attachment 1, Nos. 1 through 8, to RFA No. 1 are

DEEMED ADMITTED by Defendant.

3. The genuineness of the documents attached to the RFAs (referenced as the “Terms and Conditions” and the “billing statement”), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: L25-04056
CASE NAME: TD BANK USA, N.A. VS. TAHAYA GRANT
HEARING IN RE: MOTION TO VACATE JUDGMENT
FILED BY:

TENTATIVE RULING:

Defendant and Judgment Tahaya Grant (“Defendant”) filed a Motion to Vacate Judgment on November 17, 2025 seeking to vacate the default and default judgment previously entered herein (“Motion to Vacate”). The Motion to Vacate was set for hearing on January 6, 2025. No opposition has been filed.

Defendant’s motion was signed on November 13, 2025 and filed by the clerk on November 17, 2025. Because the motion, as submitted, did not have an assigned hearing date, time and department, that information was stamped on the caption page by the clerk at the time of filing. However, the moving party’s Proof of Service reflects that the motion papers were served on November 13, 2025 before the hearing information was given by the clerk of the Court. See Proof of Service reflecting service of the Motion to Vacate filed as part of the moving papers on November 17, 2025.

In such circumstances, a moving party will typically prepare and serve an amended notice of motion to ensure that the opposing party has received proper notice of the date, time and department for the hearing of the motion. No amended notice of motion appears on the docket. No other pleadings were filed by the moving party Defendant reflecting the giving of proper notice of the motion hearing information to the other party.

Disposition

The Court finds and orders as follows:

1. **Continued Hearing Date on Motion to Vacate.** In its discretion, the Court hereby continues the matter to **February 10, 2026, 9:00 a.m.** in **Department 14** of the Court to ensure that notice of the hearing has properly been given to the Plaintiff. Defendant shall file and serve an amended notice of the motion **on or before January 9, 2026.**